

**OSGOODE HALL LAW SCHOOL
YORK UNIVERSITY
FINAL EXAMINATION – FALL SEMESTER
THURSDAY, DECEMBER 11, 2025
TORTS (SECTION C)**

Examiner: Suzanne Chiodo

Time: 3 hours (including 15 minutes' mandatory reading time)

OPEN BOOK EXAMINATION

Please read all of these instructions carefully:

1. The examination is 3 hours in length. There are 15 minutes of mandatory reading time and 165 minutes of writing time. Suggested time allocations beside each question serve as a general guide to how much time to spend on each.
2. The examination is open book, and you may use the course materials, your summary, lecture slides, your notes, and other material covered in readings or in class. The examination is in 'secure closed' mode, which means you may only use hard copy materials that you bring into the examination. You may not access the internet or materials on your desktop during the exam.
3. The examination is worth 90% of your final grade and will be marked out of 100.
4. Candidates must answer all questions. There are two questions in this examination. Question 1 is worth 50 marks, and Question 2 is worth 50 marks.
5. Read each question carefully and provide detailed answers that defend your position, while considering counterarguments. Make sure you answer the question you have been asked.
6. Your answers should reflect a clear understanding of the course materials we have covered, and the application of what you have learned in the course to the facts in the fact patterns. Where appropriate, your answers may draw from the secondary literature we have also considered. You may state your answers in point form; most importantly, ensure that your points are clearly and fully expressed.
7. If you find an ambiguity in a question, state so in your answer and proceed to make any reasonable assumption consistent with the facts provided. If you would require additional information, please state what that information is.
8. If your analysis of a certain issue is similar to an issue you have discussed earlier, you may refer back to the place where the issue was discussed first (please do so clearly). There is no need for repetition and it will not get you extra marks.
9. The examination is 6 pages long, including this page and the appendix (case list).

QUESTION 1: FACT PATTERN (Total Marks: 50, Recommended Time: 82 Minutes)

Suzie woke up one day and couldn't speak, so she visited her family doctor, Dr Jekyll. Dr Jekyll asked if she could examine Suzie's throat and Suzie agreed. Dr Jekyll noted that Suzie's throat was very inflamed. Then she said, "I'm going to look at your ears" and Suzie didn't say anything but turned her right ear towards the doctor. Dr Jekyll looked inside and said, "Oh! The end of a Q-tip is stuck in your ear" and immediately stuck a long pair of tweezers into her right ear. Suzie wasn't expecting the tweezers. She shouted out in pain and asked Dr Jekyll to stop, but Dr Jekyll continued poking, saying, "oh, I guess you can't tolerate the pain" before poking even deeper.

Eventually, Dr Jekyll said she couldn't get the Q-tip out. She told Suzie, "you shouldn't have used a Q-tip for cleaning your ears in the first place. It says on the Q-tip box that you're not supposed to do that." (A Q-tip is a short plastic stick with cotton at either end, also known as a cotton swab or cotton bud.) She wrote Suzie a prescription for her throat and referred her to an ENT (ear, nose, and throat specialist) for her ear.

Two weeks later, Suzie saw the ENT, Dr Hyde, who works at the Rovina Hospital. Dr Hyde said that Dr Jekyll had pushed the Q-tip further in, and in doing so had perforated Suzie's right eardrum. He said that he would need to perform surgery on Suzie to get the Q-tip out and repair her eardrum. Suzie agreed to the inner ear surgery and signed a consent form.

To operate on Suzie's inner ear, Dr Hyde had to make an incision behind Suzie's right ear. He used Chlorhexidine as a topical antiseptic to prepare the skin in that area for the incision. The surgery went very well, and Dr Hyde successfully removed the Q-tip and repaired Suzie's eardrum.

Suzie was discharged from the hospital later that day. Within weeks of the surgery, however, Suzie began experiencing problems with her right ear, including complete hearing loss, severe tinnitus (ringing of the ears), pain, dizziness, and balance problems. It is extremely unusual to experience such symptoms as a result of inner ear surgery.

After seeing Dr Hyde for a post-operative consultation and doing some of her own research, Suzie found out that Chlorhexidine is toxic to the inner ear and can cause irreversible damage if used in inner ear surgery, including the symptoms that Suzie is experiencing.

The year prior to the surgery, the Rovina Hospital's Topical Antiseptic Committee (TAC) decided to replace their current antiseptic with Chlorhexidine, which is more effective in protecting against infection. In making this decision, the TAC consulted with the Chief of Surgery. The TAC believed, incorrectly, that the Chief of Surgery was responsible for all the divisions of surgery, and that the consultation would cover all surgeries and surgeons in the operating theatre of the hospital. In fact, ENT is a separate department for which the Chief of Surgery is not responsible.

At the time the TAC made its decision, the medical literature warned against the use of Chlorhexidine for inner ear surgery because permanent inner ear damage results whenever Chlorhexidine is used in such surgery. The TAC knew about this literature but made no enquiries about it and did not consult with any ENTs in the hospital. No other hospitals use Chlorhexidine in their ENT departments.

In the months following the surgery, Suzie lost the hearing in her right ear completely. The other symptoms continued and no medical intervention could repair them. The damage is permanent.

Advise Suzie with regard to any tort claims against Dr Jekyll, Dr Hyde, and the Rovina Hospital. Do not consider claims against the manufacturer of Chlorhexidine or Q-tip. Do not consider any claims for psychiatric injury, and do not discuss remedies.

You are to analyze each element in each cause of action, even if you conclude that the suit would be dismissed, for example, at the duty stage. In other words, argue in the alternative, but clearly indicate your view.

QUESTION 2: FACT PATTERN (Total Marks: 50, Recommended Time: 83 Minutes)

Rumi Huntrix rents the end unit of a townhouse complex in a suburban area just outside of Toronto. Her townhouse is connected on one side to another townhouse, owned by Jinu Saja.

Rumi is in the business of breeding gyrfalcon birds. She exports those gyrfalcons around the world for use in racing, and she has a very wealthy clientele. She can sell one gyrfalcon chick for around \$20,000. Unfortunately, gyrfalcons are highly sensitive to noise and visual disturbances, and this is heightened during breeding season, which runs from November to April. If the gyrfalcons are disturbed in this way, they are likely to panic and smash or abandon their eggs or abandon their chicks.

Jinu loves the holidays. Every December, he puts an elaborate display in his front yard, featuring Santa, reindeer, and lights. This is his first holiday season in his new house, and he goes all out (he doesn't know about the gyrfalcons next door). His favourite part of the display is an inflatable Santa that pops out of an inflatable chimney and says "Ho! Ho! Ho!" It sometimes makes passers-by jump, but everyone loves the display.

Everyone, that is, except Rumi. The inflatable Santa is ruining her gyrfalcon breeding season. The birds panic whenever they see the Santa jump out of the chimney, and many of them have destroyed their eggs as a result. Rumi estimates that she has lost six eggs and four chicks so far, and it is not even the end of December. The decline in Rumi's business has made her very morose and quiet, where normally she is very outgoing and loves the holiday season. Her friends, Mira and Zoey, say that Rumi has become a different person. She doesn't even go to her regular martial arts classes with them, and has completely gone off her favourite hobby, karaoke.

Advise Rumi with regard to any tort claims against Jinu. Do not discuss remedies.

You are to analyze each element in each cause of action, even if you conclude that the suit would be dismissed, for example, at the duty stage. In other words, argue in the alternative, but clearly indicate your view.

APPENDIX

Torts (Section C)
Fall 2025 – Professor Chiodo
Case List

Private Nuisance

Antrim Truck v Ontario
Appleby v Erie Tobacco
Christie v Davey
Rogers v Elliott
Tock v St John's Metropolitan Area Board
Bradford v Pickles
Hollywood Silver Fox Farms v Emmett
Bryant v Lefever
Fontainebleau v Forty-Five Twenty-Five
Shuttleworth v Vancouver General Hospital
Bamford v Turnley
Miller v Jackson
Sturges v Bridgman
Coventry v Lawrence

Battery and Assault

Bettel v Yim
Malette v Shulman
Reibl v Hughes
Norberg v Wynrib
Barker v Barker

Duty of Care

Dobson (Litigation Guardian of) v Dobson
Winterbottom v Wright
Donoghue v Stevenson
Watson v Buckley
Clay v AJ Crump
Hedley Byrne v Heller
Home Office v Dorset Yacht
Anns v Merton London Borough Council
Cooper v Hobart
Rankin's Garage
Palsgraf v Long Island Railroad
Jane Doe v Metropolitan Toronto (Municipality) Commissioners of Police
Mooney v British Columbia
Brown v Canada

Standard of Care

The Queen (Can) v Saskatchewan Wheat Pool
Blackwater v Plint
Vaughan v Menlove
McHale v Watson
McErlean v Sarel
Buckley v Smith
Mansfield v Weetabix
Dunnage v Randall
Bolton v Stone
Paris v Stepney
Latimer v AEC
US v Carroll Towing and Learned Hand Formula
Tomlinson v Congleton Borough Council
Watt v Hertfordshire County Council
Trimarco v Klein
Ter Neuzen v Korn
Fontaine v BC

Causation

Arndt v Smith
Barnett v Chelsea & Kensington Hospital
Walker v York General
Lambton v Mellish
Athey v Leonati
Blackstock v Foster
McGhee v National Coal Board
Snell v Farrell
Resurfice Corp v Hanke
Clements v Clements
Cook v Lewis
Fairchild v Glenhaven
Gregg v Scott
Cottrelle v Gerrard

Remoteness

In Re Polemis
Wagon Mound (No 1)
Wagon Mound (No 2)
Smith v Leech Brain
Hughes v Lord Advocate
Stephenson v Waite Tileman

Jolley v Sutton London Borough Council
Mustapha v Culligan
Saadati v Moorhead
Home Office v Dorset Yacht
Lamb v London Borough of Camden
Bradford v Kanellos
Cotic v Gray
Athey v Leonati

Defences

Butterfield v Forrester
Davies v Mann
Froom v Butcher

**END OF EXAM –
HAVE A HAPPY AND NON-TORTIOUS HOLIDAY!**